Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, June 15, 2020 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Acknowledgement

Mayor Collier gave a short introduction regarding the electronic Council meeting format and noted that the meeting was being livestreamed on the Town's website.

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the Minutes of the meeting of Council held on May 19, 2020 be adopted.

CARRIED

4. Question Period

Mayor Collier noted that members of public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. No questions were received.

5. Delegation and Petitions/Public Hearings

None

6. Correspondence

Members separated correspondence Item 7 for discussion.

Moved by: M. Crawford
Seconded by: A. Khan

That the balance of the report dated June 15, 2020 containing Items of Correspondence be adopted.

CARRIED

Council Members discussed Correspondence Item 7, "Seniors for Social Action Ontario: Alternatives to Institutionalization of Older Adults 25", and requested that information be shared with the Durham Region municipalities.

Motion

Moved by: L. Bower
Seconded by: J. Dies

That Item 7 of the Correspondence Report "Seniors for Social Action Ontario: Alternatives to Institutionalization of Older Adults 25" be received for information.

CARRIED

7. Reports

7.1 Community Affairs & Planning Committee Report

None

7.2 General Government Committee Report

Moved by: L. Bower
Seconded by: M. Crawford

That the General Government Committee Report dated June 8, 2020, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

7.4.1 Development Charges Deferral Agreement – 35-37 Kings Crescent, Salvation Army

Members of Council extended thanks to staff for their work on moving the development project forward.

Moved by: A. Khan
Seconded by: R. Tyler Morin

That the attached Development Charge Deferral Agreement be endorsed by Council.

CARRIED

7.4.2 Potential Options at Harwood Avenue North and Haskell Avenue

Members of Council asked questions regarding the proposed options presented within the staff report, costing, signalization of the pedestrian cross-over, interim actions, and project timelines to implement such options.

Geoff Romanowski, Acting Director of Planning and Development Services, and John Grieve, Transportation Supervisor, outlined the options identified within the staff report and provided estimates on project implementation and construction timelines.

Main Motion

That the report entitled "Potential Options at Harwood Avenue North and Haskell Avenue" be received for information.

Motion to Defer

Moved by: A. Khan
Seconded by: S. Lee

That the matter be deferred to the next Meeting of Council.

CARRIED

7.4.3 Updates to User Fees & Charges Policy

Members of Council asked questions regarding the previous method for determining user fees and charges prior to implementation of a municipal price index.

Sandra Serrao, Acting Director of Finance/Treasurer, responded to questions from Members of Council, noting details of the previous comparator method used to determine annual user fees and charges.

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the revised Annual Review of User Fees and Charges Policy (ATT-1) be approved.

CARRIED

7.4.4 Ajax Public Library Board Update

Members of Council commended the Ajax Public Library for their community contributions and service levels during the COVD-19 pandemic.

Moved by: S. Lee
Seconded by: J. Dies

That the Ajax Public Library Board Update be received for information.

CARRIED

8. Regional Councillors' Report

Regional Councillors provided an update regarding Durham Regional Council matters, including presentations and discussions relating to re-branding of Durham Tourism, the anaerobic digester, and the phosphorus reduction action plan. Forthcoming service changes to Durham Region Transit were also noted.

Moved by: M. Crawford
Seconded by: S. Lee

That the Regional Councillors' Reports of June 15, 2020 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 Ajax Council Land Acknowledgement Update

Councillor Bower and Regional Councillor Lee introduced the motion and reviewed its contents. Council Members asked questions regarding consultation on the proposed wording of the update and engagement with the Town's soon-to-be-hired Diversity & Inclusion Coordinator, and discussed possible future reconciliation actions to support the proposed changes.

Main Motion

Moved by: L. Bower
Seconded by: S. Lee

WHEREAS Pamela Palmater, a Mi'kmaq lawyer and professor in the Department of Politics and Public Administration at Ryerson University, outlined in "Restoring the Place of Indigenous Peoples in the GTHA", and reminded participants at the Town's Diversity Exchange in November, 2019 that the real goals of 'Truth and Reconciliation' are not met by a one-time political apology, the renaming events, or land acknowledgements;

AND WHEREAS Palmater challenged participants of the Diversity Exchange to update land acknowledgments towards substantive reconciliation, accepting responsibility for what has happened, promising never to let it happen again, and making amends;

AND WHEREAS Palmater outlines: "Reconciliation requires municipalities to fully engage in the difficult process of getting to the truth, making amends and seeking solutions to ongoing injustices lived by urban Indigenous peoples in the region today";

AND WHEREAS in a February, 2020 opinion piece in the Globe and Mail, David McLaughlin, principal speechwriter for Ontario Premier Dalton McGuinty, notes land acknowledgments are coming under scrutiny for lacking real meaning and being a formality, saying: "I do see a problem when speakers resort to reading formulaic language, rushed through in one breath, leaving an impression that they have no personal connection to the words they are saying. It should challenge the speaker and the audience to think about how our prosperity in Canada was built using space where societies, traditions and cultures already existed";

AND WHEREAS Hayden King, an Anishinaabe writer and educator who helped write Ryerson University's land acknowledgment, said the that he felt some regret about the practice: "I started to see how the territorial acknowledgment could become very superficial and also how it sort of fetishizes these actual tangible, concrete treaties";

AND WHEREAS "a land acknowledgement is not just about opening a speech, it is about following through on commitments long after the applause has ended," says McLaughlin. He writes further: "It should not leave an impression that you are checking a box. When you do say it, read it with energy and sense of optimism versus using a solemn tone that suggests an act of remembrance. It should come across as an active desire to work toward respect, reconciliation and partnership with Indigenous people";

AND WHEREAS June is National Indigenous History Month, honouring the history, heritage, achievements and diversity of Indigenous people across Canada;

NOW THEREFORE BE IT RESOLVED:

THAT Ajax Council recommits to do our part to achieving truth, justice, and reconciliation with Indigenous peoples;

AND THAT the Town's land acknowledgment be updated to inspire and compel conversation and action;

AND THAT Ajax Council endorses the following new land acknowledgment:

"We would like to begin this meeting by acknowledging that the land on which we gather is situated within the traditional and treaty territory of the Mississaugas of Scugog Island and the Chippewas of the Anishinabeg, known today as the Williams Treaties First Nations. This place is, and will continue to be, home to Indigenous Peoples. Let us acknowledge the mistakes of the past and support true reconciliation in the present by engaging and celebrating our Indigenous community and moving forward together with kindness and respect."

Motion to Refer

Moved by: A. Khan
Seconded by: R. Tyler Morin

That the Ajax Council Land Acknowledgement Update be referred to the Town's Diversity & Inclusion Coordinator, once hired, with direction to review the proposed wording.

CARRIED

RECORDED VOTE:

In Favour: Regional Councillor Crawford, Councillor Khan, Councillor Tyler Morin, Mayor Collier

Opposed: Councillor Bower, Regional Councillor Dies, Regional Councillor Lee

Mayor Collier vacated the Chair. Deputy Mayor Dies assumed the Chair.

9.2 **Changes to Procedural Bylaw, Code of Conduct, etc.**

Mayor Collier introduced the motion and reviewed its contents. Members of Council asked questions regarding the scheduled Council Code of Conduct and Procedure By-law reviews, and the current notice of motion process.

Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to questions from Members of Council and provided the scope of the forthcoming Procedure By-law and Council Code of Conduct reviews. She shared information on a municipal scan of notice of motion processes.

Main Motion

Moved by: S. Collier
Seconded by: A. Khan

1. That LIS staff be directed to implement the following change to the Council Procedure Bylaw, as part of planned Procedure By-law Updates for 2020:

    a. Remove section 6.27.2, which allows for the submission of a Notice of Motion directly to the Clerk, ten days prior to the date of the meeting at which the motion is to be introduced and debated; and,

2. That LIS staff be directed to expand and clarify the "Communications" section of the Council Code of Conduct, as part of the planned September 2020 Code of Conduct Update, to provide more clarity and detail as to how decisions and positions of Council are to be communicated.

3. That Office of the CAO staff be directed to propose amendments to the 'Communications Tools & Support Policy' outlining procedures and rules for Council member motions, constituent support letters, advocacy letters, and the use of Town letterhead by Council members, no later than September 2020.

Amendment

Moved by: S. Lee
Seconded by: M. Crawford

That the motion be amended to strike the word "implement" from clause 1. and replace it with "examine".

CARRIED

Motion as Amended

Moved by: S. Collier
Seconded by: A. Khan

1. That LIS staff be directed to examine the following change to the Council Procedure Bylaw, as part of planned Procedure By-law Updates for 2020:

    a. Remove section 6.27.2, which allows for the submission of a Notice of Motion directly to the Clerk, ten days prior to the date of the meeting at which the motion is to be introduced and debated; and,

2. That LIS staff be directed to expand and clarify the "Communications" section of the Council Code of Conduct, as part of the planned September 2020 Code of Conduct Update, to provide more clarity and detail as to how decisions and positions of Council are to be communicated.

3. That Office of the CAO staff be directed to propose amendments to the 'Communications Tools & Support Policy' outlining procedures and rules for Council member motions, constituent support letters, advocacy letters, and the use of Town letterhead by Council members, no later than September 2020.

CARRIED

Mayor Collier resumed the Chair.

10. By-laws

Moved by: M. Crawford
Seconded by: L. Bower

That By-law numbers 19-2020 to 21-2020 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

11.1 Automated Speed Enforcement

Motion to Suspend the Rules of Procedure

Moved by: R. Tyler Morin
Seconded by: A. Khan

That the rules of procedure be suspended in order to introduce a motion without notice regarding Automated Speed Enforcement.

CARRIED on 2/3rds

Councillor Tyler Morin introduced the motion and reviewed its contents.

Moved by: R. Tyler Morin
Seconded by: A. Khan

WHEREAS resident safety is a primary concern for Ajax Council;

AND WHEREAS speeding concerns continue to increase as our population grows;

AND WHEREAS automated speed enforcement is an additional tool to discourage speeding without an increased burden on DRPS;

AND WHEREAS the Province of Ontario has amended the Highway Traffic Act to enable the use of Automated Speed Enforcement (ASE) Technology to improve safety in school and community safety zones;

AND WHEREAS on December 2, 2019, the Province of Ontario passed the regulation which allows municipalities to operate an ASE Program;

AND WHEREAS on February 18, 2020, Ajax Council endorsed the process to establish Community Safety Zones, approved 2 existing and an additional 10 Community Safety Zones be established, signs be installed, and the Traffic By-Law be amended;

AND WHEREAS ASE aligns with the following sections of the Ajax Strategic Plan:

Focus Area: Leading in our Community
Goal 5: Investing in community safety
Action 5.2: Promote safer streets by supporting new and innovative traffic approaches and initiatives.

NOW THEREFORE be it resolved that Ajax Council;

1. Directs staff to complete the sign installations in the 12 approved Community Safety Zones as soon as possible and to implement the 90 day warning period in advance of the new ASE deployment; and

2. That staff report back to Council at the September 2020 GGC meeting with the costs to implement the ASE program, the recommendation of locations for 3 portable ASE units and next steps.

CARRIED

11.2 Mayor's Anti-Racism Taskforce

Mayor Collier vacated the Chair. Deputy Mayor Dies assumed the Chair.

Motion to Suspend the Rules of Procedure

Moved by: S. Collier
Seconded by: M. Crawford

That the rules of procedure be suspended in order to introduce a motion without notice regarding establishing a Mayor's Anti-Racism Taskforce.

CARRIED on 2/3rds

Mayor Collier introduced the motion and reviewed its contents. Members of Council asked questions about and discussed the naming of the task force, establishment of the terms of reference, recruitment, and membership of the proposed task force.

Council members debated a proposed amendment to change the proposed name of the task force and assign development of the terms of reference and appointment of members to the Town's Diversity and Inclusion Staff Committee.

Main Motion

Moved by: S. Collier

WHEREAS there has been recent protests throughout the United States, Canada and Ontario, including the Region of Durham in support of Black Lives Matter movement;

AND WHEREAS it is imperative to take pause and provide a space for Black voices and other members of the community to be heard;

AND WHEREAS as an organization committed to supporting our racialized communities, the protests reminds us yet again that we have a lot of work to in addressing anti-racism;

AND WHEREAS members of the community are calling on public leaders to take action on systemic and institutional racism to combat barriers felt by Black people, Indigenous people, the LGBTQ+, and other groups; and

NOW THEREFORE BE IT RESOLVED THAT Council endorses the creation of a Mayor's Task Force on Anti-Racism, to run to the end of 2021;

AND THAT the Mayor be authorized to develop and approve a Terms of Reference for the Task Force;

AND THAT the Mayor be authorized to recruit and appoint members and stakeholders to the Task Force;

AND THAT Council endorses the provision of specialized staff support to the Task Force (e.g. development of Terms of Reference, strategic advice and guidance, communications support, etc.), as approved by the CAO;

AND THAT the Task Force be required to update Council with its findings and recommendations prior to the start of Phase 2 – Implementation;

AND THAT any requests for funding and resources to support Phase 2 be brought forward to Council for authorization, either as part of the annual budget process or separately from that process, as needed.

Amendment

Moved by: S. Lee
Seconded by: L. Bower

That any reference to the "Mayor's Anti-Racism Taskforce" be changed to the "Town of Ajax Anti-Black Racism Committee"; and

That the Terms of Reference for the Task Force and recruitment and appointment of members be at the discretion of the Town of Ajax Diversity and Inclusion Staff Committee.

MAIN MOTION WITHDRAWN

Mayor Collier resumed the Chair.

11.3 Food Industry & Food Industry Workers

Councillor Bower provided notice of a forthcoming motion for the next Council Meeting regarding recognition for the Food Industry and Food Industry Workers.

12. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities, including an upcoming virtual Town Hall for businesses, Friday virtual "Coffee Chats" with the Mayor, and kick-off of the anti-racism task force.

13. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 22-2020 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting held on June 15, 2020 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the June 15, 2020 meeting of the Council of the Town of Ajax be adjourned. (9:14 p.m.)

CARRIED

Mayor

Acting D-Clerk